

MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.

17)

No. MahaRERA/VH/WARRANT/13/10/2021.

Date: 20th October 2021.

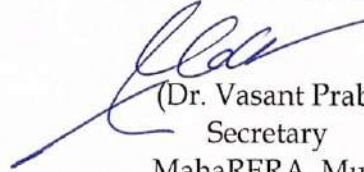
To,
The Collector,
Office of Collector,
Administrative Building,
9th floor, Government Colony,
Opp. Chetana College,
Bandra (East), Mumbai-400 051

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint
No. CC006000000193162 filed by Kamlesh Lachhman Tilwani &
Lachhman Jiwatram Tilwani in Project No. P51800012383.

Sir,

I am forwarding the recovery warrant under Section 40(1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,



(Dr. Vasant Prabhu)

Secretary
MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/13/10/2021.

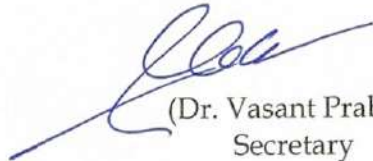
Date: 20th October 2021.

1.	Name and address of the firm: -	Kamlesh Lachhman Tilwani Lachhman Jiwatram Tilwani 20-A/ 104, Gypsy Rose, Shastri Nagar, Andheri (W), Mumbai Suburban - 400053. Mobile No.- +91- 9820189058 Email ID: - reracomplaintsguidancecell@gmail.com
2.	The sum to be recovered.	Refund of Rs. 14,54,058/- paid by the complainant along with the applicable interest at the rate of 9% p. a. till refund of the entire amount, along with the cost of complaint of Rs. 20,000/-.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.
4.	No. & Date of order under which amount is ordered to be recovered.	Complaint No.: CC006000000193162 Final Order dated: 14 th December 2020
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	Nirmal Developers Jawahar Talkies Compound, Dr. R P Road, Mulund West - 400080 Mr. Dharmesh Jain (Authorized Signatory)

		Nirmal House, Mulund Goregaon Link Road, Nirmal Nagar, Mulund (W) - 400080. Details of Contact Person: - Shailendra Minocha HOD Mobile No.- +91- 9004465472 Email ID: - ndmulund@nirmallifestyle.com
6.	Full details of the property of defaulter against which the process may be executed.	Flat No. D-1905 situated at the project known as "OLYMPIA C D" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. CTS NO 42. a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800012383. b) Other apartments which are still not booked and not mortgaged to any Financial Institutions /Bank. Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No./II No. of the property	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory

	f) Area of the property in square meters g) CTS No. of the property area of the property.	and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.
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Mumbai
Date: 20th October 2021


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.

No. MahaRERA/VH/WARRANT/13/10/2021.

Date: 20th October 2021.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000193162

Project No: P51800012383

Kamlesh Lachhman Tilwani

Lachhman Jiwastram Tilwani

--- Complainant.

Versus

Nirmal Developers

--- Respondent.

To,
The Collector,
Office of Collector,
Administrative Building,
9th floor, Government Colony,
Opp. Chetana College,
Bandra (East), Mumbai-400 051

Whereas the above-named complainant has filed the above complaint No. CC006000000193162, and the Authority/Adjudicating Officer passed the enclosed order directing the respondent to refund the amount of ₹ 14,54,058/- along with interest at 9% p. a. till refund of amounts. The respondent was also directed to pay ₹ 20,000/- for cost of the complaint.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

Kamlesh Lachhman Tilwani
Lachhman Jiwatram Tilwani

20-A/ 104, Gypsy Rose, Shastri Nagar, Andheri (W), Mumbai
Suburban - 400053.

Mobile No.- +91- 9820189058

Email ID: - reracomplaintsguidancecell@gmail.com

2) Name of respondents/promoters/directors/partners
with their addresses:

Nirmal Developers

Jawahar Talkies Compound, Dr. R P Road, Mulund West - 400080

Mr. Dharmesh Jain
(Authorized Signatory)
Nirmal House, Mulund Goregaon Link Road, Nirmal Nagar, Mulund
(W) - 400080.

Details of Contact Person: -
Shailendra Minocha
HOD

Mobile No.- +91- 9004465472

Email ID: - ndmulund@nirmallifestyle.com

3. Name of the project & its location:

Flat No. D-1905 situated at the project known as "OLYMPIA C D"
situated at Plot Bearing No / CTS no / Survey Number/Final Plot no.
CTS NO 42.

a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800012383.

a) Other apartments which are still not booked and not mortgaged to any Financial Institutions/Bank.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.

4) Particulars of immovable property and any other movable and immovable property:

a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

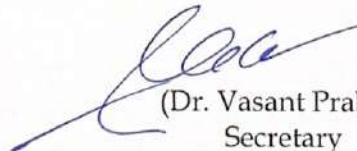
5) Amount to be refunded:

Refund of Rs. 14,54,058/- paid by the complainant along with the applicable interest at the rate of 9% p. a. till refund of the entire amount, along with the cost of complaint of Rs. 20,000/-.

6) Enclosures:

- i) Final order dated. 14th December 2020.
- ii) Order of Non-compliance dated 27th August 2021.

Mumbai
Date: 20th October 2021


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**BEFORE THE
MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI**

NON-COMPLIANCE APPLICATION

In

COMPLAINT NO: CC006000000193162

Kamlesh Lachhman Tilwani

Lachhman Jiwatram Tilwani

.... Complainants

Versus

M/s Nirmal Developers

.... Respondents

MahaRERA Regn. No. P51800012383

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Adv. Rajeshwar Deshmukh appeared for the complainant.

Adv. Tushar Kadam appeared for the respondent.

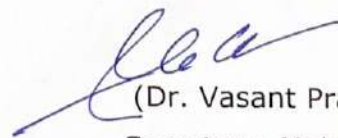
Order

27th August, 2021

(Through Video Conferencing)

1. The Complainants have filed the present application for non-compliance of the MahaRERA Order dated 14th December 2020 in Complaint no: CC006000000193162 (hereinafter referred to as the said complaint) by the Respondent.
2. In the said complaint, the respondent was directed to refund the amount of ₹ 14,54,058/- to the complainant along with interest at the rate of 9% p. a. from the dates of receipt till refund of the amount. The respondent was also directed to pay ₹ 20,000/- for cost of the complaint.

3. On the said non-compliance application, the hearing was held today through video conferencing as per MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.
4. During the hearing, the complainant submitted that, the respondent has failed to comply with the order issued by MahaRERA and has till date failed to pay interest and refund of the amount paid by the complainant. It is causing a lot of difficulty to the complainant. The complainant therefore sought action under section 40(1) of RERA against the respondent.
5. The respondent appeared for the hearing however, it did not object to the issuance of the warrant.
6. In view of the above facts, it is clear that, the respondent has delayed the payment of the amount to the complainant which the respondent was liable to pay as per the order. Hence, as per the request of the complainant, the MahaRERA has no alternative but to proceed with action under section 40 (1) of RERA against the respondent. It is therefore directed to issue recovery warrant under section 40(1) of RERA read along with rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017.
7. In view of the above, the application of non-compliance stands disposed of.



(Dr. Vasant Prabhu)

Secretary, MahaRERA